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CHAPTER xxxii.

An Act to enable the Monmouthshire and South Wales Employers' Mutual Indemnity Society Limited to make special calls upon its members to confer upon it preferential rights in certain events and to empower it to make certain agreements with its members and for other purposes. [10th July 1940.]

WHEREAS the Monmouthshire and South Wales Employers' Mutual Indemnity Society Limited (in this Act referred to as "the Society") was incorporated on the twenty-fifth day of June one thousand eight hundred and ninety-eight under the Companies Acts 1862 to 1893 as a company limited by guarantee:

And whereas the objects for which the Society is established are—

- (1) To indemnify the members of the Society against the payment of any compensation or damages payable either under the Workmen's Compensation Act 1897 the Workmen's Compensation Act 1906 or the Employers' Liability Act 1880 respectively or any statutory modification thereof or at common law to any workman or to the dependants of any workman in respect of any accident or alleged accident resulting or alleged to have resulted

60 & 61
 Vict. c. 37.
 6 Edw. 7.
 c. 58.
 43 & 44
 Vict. c. 42.

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35 & 36
Vict. c. 77.

in injury whether fatal or otherwise to any workman or workmen employed at or in connection with any mine in which any member of the Society is interested and to which the Coal Mines Acts 1887 to 1919 or the Metalliferous Mines Regulation Act 1872 respectively or any statutory modifications thereof apply or at or in connection with any railway factory quarry brickworks engineering works or other works in which any member of the Society is interested and arising out of and in the course of such employment;

- (2) To contract for and grant any such indemnity on such terms and subject to such qualifications and conditions as may seem expedient;

and the other objects set forth in the memorandum of association thereof:

And whereas by the articles of association of the Society as amended on the twelfth day of June one thousand nine hundred and twenty-two it was provided (by article 35 thereof hereinafter called "original article 35") that whilst and whenever any mine or works of a member was or were entered in the register of protected mines and works (kept under the provisions of those articles) as protected against "ordinary accidents" (in the said articles defined) under that article the Society was in respect of every ordinary accident or alleged ordinary accident occurring at such mine or works to be under the obligation following (amongst others) towards the member protected in respect of such mine or works (hereinafter called "the member protected under original article 35") (that was to say):—

The Society was to indemnify such member against the payment of any compensation or damages payable under the Workmen's Compensation Act 1906 and the Employers' Liability Act 1880 respectively or any statutory modification thereof or at common law in respect of the deaths of or injuries to workmen resulting from such accident or alleged accident:

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And whereas by original article 35 it was also provided that the directors for the time being of the Society should make the series of calls hereinafter mentioned upon the members protected under original article 35 and that such calls should be made with reference to such accidents as should occur in a particular financial year namely certain calls to be called "provisional calls" and "permanent fund calls" respectively and after making provision for estimating the amounts required to be obtained by such calls and for the application thereof it was further provided that after the expiration of the period of five years from the commencement of each particular year the Society should cause a further actuarial estimate to be made of its total outstanding liabilities under that article in respect of the ordinary accidents which occurred during the particular year and if necessary that the said directors should make calls to be called "adjusting calls" on the members protected under original article 35 in respect of the particular year:

And whereas by a special resolution of the Society confirmed on the twelfth day of April one thousand nine hundred and twenty-seven it was resolved that the Society's articles of association be altered (among other ways) by substituting a new definition of "accident" for that contained in the said articles and by deleting the whole of original article 35 and substituting therefor a new article (hereinafter called "new article 35"):

And whereas by new article 35 it was provided (amongst other things) that—

- (a) whilst and whenever any mine or works of a member was or were entered in the said register of protected mines and works as protected against "ordinary accidents" under that article the Society should in respect of every ordinary accident or alleged ordinary accident occurring at such mine or works be under the obligations following towards the member (hereinafter called "the member protected under new article 35") (that was to say):—

The Society should indemnify such member against the payment of any compensation or damages payable under the

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15 & 16
Geo. 5. c. 84.

Workmen's Compensation Act 1925 and all Acts or parts or sections of Acts repealed thereby and the Employers' Liability Act 1880 and all statutory modifications or re-enactments of the said Acts or any of them (hereinafter called "the Acts") or at common law in respect of the death of or injuries to workmen resulting from such accident or alleged accident;

- (b) throughout that article "accident" included the contracting of a disease entitling a workman to compensation under the Acts and such an accident should be deemed to happen or occur at the time when the workman was first incapacitated or suspended by reason of such disease but so that where such a disease recurred after the workman should have ceased to be entitled to compensation the recurrence of such disease should be deemed a fresh accident happening when the recurrence took place Similarly where a workman wholly or partially incapacitated by an accident in the ordinary sense recovered and ceased to be entitled to compensation and such total or partial incapacity recurred so as to entitle him to compensation without his being involved in any fresh accident such recurrence should be deemed a fresh accident happening when the recurrence took place;
- (e) the said directors should make calls upon the members protected under new article 35 and separate calls should be made with reference to each financial year Within a period of five years from the commencement of each year the said directors should make one or more calls (to be called "provisional calls") in respect of that year on every member protected under new article 35 of such amount or such aggregate amount as should in the opinion of the said directors be at least sufficient adequately to provide the moneys required to indemnify such member against all compensation and damages payable or to become payable by such

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member in respect of the ordinary accidents occurring at the mine or works of such member in that year;

- (f) the sums obtained by the provisional calls should be carried or credited to a separate fund to be called "the ordinary accident fund" out of which fund there should be discharged all sums becoming payable by the Society in respect of ordinary accidents and a due proportion of the administration and other general expenses of the Society. The sums paid by each member in respect of the provisional calls made upon him in respect of each particular year should be credited to an ordinary accident account for that year to be opened between such member and the Society in the Society's books and there should also be credited to such account at the end of each year whilst the same remained open one year's interest on the amount standing to the credit of such account at the rate therein mentioned. There should be debited to such account the amounts paid by the Society pursuant to that article to or on behalf of such member during the period of five years from the commencement of such particular year in respect of ordinary accidents which occurred at the mine or works of such member during the particular year and also the proper proportion attributable to such member's account of the administration and other general expenses of the Society apportioned to the ordinary accident fund. Provided that interest should not be credited to accounts already open as at the thirty-first day of December one thousand nine hundred and twenty-six in respect of any year prior to the year one thousand nine hundred and twenty-seven;
- (g) as soon as conveniently might be after the expiration of the said period of five years the said directors should assess or estimate or cause to be assessed or estimated (on an actuarial basis as far as practicable) the

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amount of the outstanding liability of each member protected under new article 35 to pay compensation or damages in respect of ordinary accidents which occurred during the particular year;

- (h) as soon as conveniently might be after such assessment or estimate of the outstanding liability of any member should have been made the said directors should make a call (to be called "the final call") on such member in respect of the particular year of an amount which should (subject to subclause (i) of that article) be equal to the assessed or estimated amount of his outstanding liability. The moneys obtained by the final calls should be carried or credited to the ordinary accident fund;
- (i) as soon as conveniently might be after the assessment or estimate of the outstanding liability of any member should have been made the ordinary accident account of such member for the particular year should be closed and a balance struck. Any member whose ordinary accident account when so closed should show a debit balance should forthwith pay the amount of such balance to the Society and the same should be carried or credited to the ordinary accident fund. If the ordinary accident account of any member when so closed should show a credit balance the amount of such balance should be applied in or towards paying on behalf of the member the amount of the final call made upon him in respect of the particular year and the balance (if any) should be refunded to the member or if the said directors in their discretion thought fit and upon the application of the member be carried to a "suspense account" on behalf of such member to be applied towards payment of any calls (whether provisional or final calls) subsequently becoming payable by such member in respect of any other year:

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And whereas the said directors made calls upon members protected under original article 35 and upon members protected under new article 35 pursuant to the provisions of such articles respectively with reference to each of the following periods namely the half-year consisting of the six calendar months ended the thirty-first day of December one thousand nine hundred and twenty-two and each of the following ten years namely the year ended the thirty-first day of December one thousand nine hundred and twenty-three and each subsequent year down to and including the year ended the thirty-first day of December one thousand nine hundred and thirty-two save and except that as from the adoption of new article 35 the said directors applied the provisions of such article to the exclusion of the provisions of original article 35 not only with reference to such of the said years as occurred after such adoption but also to the said half-year and such of the said years as occurred before such adoption and save and except also as is hereinafter recited :

And whereas the Society and its members protected under original article 35 and its members protected under new article 35 acted upon the footing that the true construction of the provisions of subparagraph (b) of new article 35 was such that in assessing or estimating the amount of the outstanding liability of any member for the purpose of making an adjusting call or a final call in respect of the said half-year or any of the said years pursuant to the provisions of original article 35 or of new article 35 those workmen who were not being paid compensation on the thirty-first day of December occurring in the fourth year after the expiration of such half-year or year (hereinafter called "the date of assessment") ought not to be taken into account in respect of the ordinary accidents which occurred during such half-year or year :

And whereas the said directors acting upon the footing aforesaid in making such adjusting calls or final calls left out of account every workman who though having been injured or having contracted disease as a

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result of an ordinary accident was not being paid compensation on the date of assessment and also in some cases in fixing finally the sum to be paid in respect of ordinary accidents left out of account by agreement with the member concerned certain of such workmen who were being paid compensation on the date of assessment :

And whereas the Society has been advised that having regard to the speeches of members of the House of Lords in a matter shortly entitled " In the Matter of the Workmen's Compensation Act 1925 " and " In the Matter of Arbitrations between Wooding and the Society James and the Society and Hawkins and the Society " and the decision of the said House in the said matter the said construction of the provisions of subparagraph (b) of new article 35 was erroneous and that no workman who had been injured or contracted disease as a result of an ordinary accident occurring in the said half-year or in any particular year of the said ten years ought to have been so left out of account whether he was actually in receipt of compensation upon the date of assessment or not except any workman who had recovered at least to such an extent that he was then able to compete in the open market for employment as a sound workman although there might remain some latent weakness consequent on the accident which might in the future break out and incapacitate him and entitle him to receive compensation :

And whereas as a result of the said adjusting or final calls having been made or the sum to be paid in respect of ordinary accidents having been finally fixed in the manner aforesaid the Society although liable to indemnify its members protected under original article 35 and its members protected under new article 35 in respect of every such workman as aforesaid has not received sums equivalent to an actuarial calculation of its liability in respect of such workmen so left out of account as aforesaid and the Society is liable by reason thereof to incur serious financial loss :

And whereas it is expedient that the directors of the Society should be empowered in respect of each or

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any of the said half-year and the said ten years to make assessments or estimates of the amount of the outstanding liability at the expiration of a period of four years from the end of such half-year or year of each or any such member to pay compensation in respect of every ordinary accident which occurred during such half-year or year so far as it relates to or affects any particular workman who was left out of account as aforesaid although he had not recovered to the extent aforesaid and to make a further call (hereinafter called a "special call") on such member of an amount not exceeding the assessed or estimated amount of his said outstanding liability in respect of such half-year or year:

And whereas further it is expedient that the Society should be empowered to enter into agreements with members releasing members from liability to pay special calls in consideration of such members releasing the Society from liability to indemnify such members against the payment of compensation or damages in respect of the death of or injuries to any workman who was left out of account as aforesaid subject however to certain provisions for the protection of the rights of such workmen in any such event as is hereinafter mentioned:

And whereas further it is expedient that if by reason of any event specified in section 5 of the Workmen's Compensation Act 1906 as originally passed or as amended by the Workmen's Compensation Act 1923 or in section 7 of the Workmen's Compensation Act 1925 happening in the case of any such member the Society has or shall become under any liability to pay compensation or damages to or in respect of any workman who was left out of account as aforesaid the capitalised value of that liability less the amount of any special call (so far as it is attributable to such liability) which may have been or may be paid by such member shall be deemed to be a debt due to the Society from such member and that the amount of any such debt shall be included amongst the debts which in certain events are to be paid in priority to all other debts:

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And whereas it is expedient that the other provisions of this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the Monmouthshire and South Wales Employers' Mutual Indemnity Society Limited Act 1940.

Interpretation.

2. In this Act unless the context otherwise requires the following expressions have the following meanings hereby assigned to them (that is to say) :—

“ The Society ” means the Monmouthshire and South Wales Employers' Mutual Indemnity Society Limited;

“ The directors ” means the directors for the time being of the Society;

“ Member ” means any person firm or company who at any time during the period to which this Act relates was a member of the Society protected under article 35 of the articles of association of the Society as amended on the twelfth day of June one thousand nine hundred and twenty-two or under the new article 35 substituted therefor by special resolution of the Society confirmed on the twelfth day of April one thousand nine hundred and twenty-seven and includes any person firm or company lawfully standing in the place of a member as regards any mine or works in respect of which such member was protected as aforesaid;

“ The period to which this Act relates ” means the period which commenced on the first day of July one thousand nine hundred and twenty-two and ended on the thirty-first day of

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December one thousand nine hundred and thirty-two both days inclusive;

“Mine” means any mine to which the Coal Mines Acts 1887 to 1919 or the Metalliferous Mines Regulation Act 1872 apply and has the same meaning as that word has in those Acts respectively or any statutory modification thereof;

“Works” includes any railway factory quarry brickworks or engineering works or any other works in respect of which a member was at any time during the period to which this Act relates protected against claims in respect of accidents but does not include a mine;

“A member's mine” or “a member's works” or other words denoting a mine or works belonging to a member includes any mine or works which at any time during the period to which this Act relates a member was establishing or working or in which a member was in the opinion of the Society otherwise interested;

“The Acts” means and includes the Workmen's Compensation Act 1925 and all Acts or parts or sections of Acts repealed thereby and the Employers' Liability Act 1880 and all statutory modifications or re-enactments of the said Acts or any of them;

“Accident” has the same meaning as that word has in the Acts but includes where the context admits the contracting of any disease the contracting of which entitles or may entitle a workman to compensation under the Acts;

“An ordinary accident” means an accident which occurred at any time during the period to which this Act relates at a member's mine or works and resulted in the death or injury or the contracting of disease of or by some workman or workmen but does not come within the definition of an “extraordinary accident”;

“An extraordinary accident” means an accident which occurred at any time during the period

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to which this Act relates at a member's mine or works and resulted in the death or injury or the contracting of disease of or by more than three persons ordinarily employed underground or of or by more than three persons ordinarily employed upon the surface and in respect of which accident claims for compensation or damage have been or shall be made and paid under the direction of the Society for the death or injury or contracting of disease of or by more than three persons ordinarily employed underground or of or by more than three persons ordinarily employed upon the surface;

“Workman” includes every person who at any time during the period to which this Act relates was engaged in an employment upon or in connection with any member's mine or works whether by way of manual labour or otherwise and whether his agreement was one of service or apprenticeship or otherwise and was expressed or implied was oral or in writing or partly one and partly the other;

“Omitted ordinary accident” means any ordinary accident but only in so far as it relates to or affects a workman to whom this Act relates;

“Workman to whom this Act relates” means a workman to whom injury was caused or by whom disease was contracted as a result of an ordinary accident which occurred at some member's mine or works in any particular half-year or year and who on the final date had not recovered to such an extent as to be able to compete in the open market for employment as a sound workman but who whether originally taken into consideration or not in respect of such accident for the purpose of making the adjusting or final call was ultimately left out of account in fixing the sum paid by such member in discharge of the adjusting or final call on such member in respect of ordinary accidents which occurred during such half-year or year;

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"The final date" means as regards any ordinary accident the thirty-first day of December which occurred in the fourth year after the year ended the thirty-first day of December in which such ordinary accident occurred.

3.—(1) The directors may serve a notice on any member requiring him to furnish to the Society the name of and particulars concerning any and every workman to whom this Act relates who was injured or contracted disease as a result of any omitted ordinary accident at such member's mine or works. The particulars to be furnished by the member to the Society are specified in the schedule to this Act.

Members to furnish names and particulars of workmen.

(2) The notice shall appoint a day (not being less than fourteen days after the date of the notice) on or before which such names and particulars are to be furnished and the notice shall state that if the member fails to furnish such names and particulars as aforesaid on or before the day appointed the right (if any) of such member to be indemnified by the Society against the payment of compensation in respect of any workman whose name or the said particulars concerning whom such member so fails to furnish will cease but without prejudice to the operation of section 10 (Protection of workmen's rights) of this Act.

(3) Subject to the provisions of section 10 (Protection of workmen's rights) of this Act if the requirements of any such notice as aforesaid are not complied with the Society shall on and from the day appointed as aforesaid cease to be under any obligation to indemnify the member in default against the payment of compensation or to repay to such member any compensation premium or call at any time paid by such member in respect of any such workman whose name or the particulars aforesaid concerning whom such member fails to furnish.

4. The directors may in respect of each or any of the following periods namely the half-year consisting of the six calendar months ended the thirty-first day of December one thousand nine hundred and twenty-two and each of the following ten years namely the year ended the thirty-first day of December one thousand

Power to estimate outstanding liability of members.

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nine hundred and twenty-three and each subsequent year down to and including the year ended the thirty-first day of December one thousand nine hundred and thirty-two assess or estimate or cause to be assessed or estimated the amount of the outstanding liability at the expiration of a period of four years from the end of such half-year or year of each or any member to pay compensation in respect of every omitted ordinary accident which occurred to any workman to whom this Act relates during such half-year or year.

Power to
make
special
calls.

5. After such assessment or estimate of the said outstanding liability of any member in respect of any such half-year or year shall have been made the directors may make a call (to be called a "special call") on such member in respect of such half-year or year of an amount which shall not exceed the assessed or estimated amount of his said outstanding liability in respect of such half-year or year.

Notice of
call to be
given.

6. When the directors make a special call on any member such call shall be made by resolution of the directors and notice of such resolution shall forthwith be given to such member and the notice in each case shall specify the amount of the call and the time when and place where such call is to be paid and to whom the same is to be paid and every member shall be bound to pay to the Society at the time and place so fixed the amount of every call so made on him. If any special call is not paid on or before the day appointed for payment thereof the member shall pay interest thereon from that day until payment at such rate not exceeding five per centum per annum as the directors may determine but the directors shall be at liberty to waive payment of such interest wholly or in part:

Provided that whenever any recurrence of incapacity of a workman to whom this Act relates arising as a result of an omitted ordinary accident has been deemed a fresh accident happening when the recurrence took place within the meaning of subparagraph (b) of the said new article 35 of the said articles of association of the Society and after the expiration of a period of four years from the end of the half-year or year in which the original accident

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occurred to such workman the member has paid to the Society any sum or sums in respect of the fresh accident so deemed to have happened by way of calls or otherwise then and in such case the member shall be entitled to set off against any special calls made on him the sum or sums so paid by him but so that in any case where a sum so paid was included in an adjusting or final call the amount set off as aforesaid shall not exceed such part of such adjusting or final call as was attributable to the said fresh accident so deemed to have happened.

7.—(1) If any member fails to pay any special call on or before the day appointed for the payment thereof the directors may at any time thereafter during such time as the special call remains unpaid serve a notice on such member requiring him to pay such special call together with any interest that may have accrued and all expenses that may have been incurred by the Society by reason of such non-payment.

Provision
in case of
default in
payment
of special
call.

(2) The notice shall appoint a day (not being less than fourteen days after the date of the notice) and a place or places on and at which such special call and such interest and expenses as aforesaid are to be paid and the notice shall state that in the event of non-payment on or before the day and at the place appointed the right (if any) of the member to be indemnified by the Society against the payment of compensation in respect of any omitted ordinary accident which occurred in the half-year or year or other period in respect of which such special call was made shall cease but without prejudice to the operation of section 10 (Protection of workmen's rights) of this Act.

(3) Subject to the provisions of section 10 (Protection of workmen's rights) of this Act if the requirements of any such notice as aforesaid are not complied with the Society shall on and from the day appointed as aforesaid cease to be under any obligation to indemnify the member in default against the payment of compensation in respect of any omitted ordinary accident which occurred in the half-year or year or other period in respect of which such special call was made.

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Society to
have pre-
ferential
rights in
certain
events.

8.—(1) In the event of any member at any time after the thirty-first day of December one thousand nine hundred and thirty-nine having become or becoming bankrupt or having made or making a composition or arrangement with his creditors or if the member is a company in the event at any time after the said date of the company having commenced or commencing to be wound up or a receiver or manager of the company's business or undertaking having been or being duly appointed or possession having been or being taken by or on behalf of the holders of debentures secured by a floating charge of any property comprised in or subject to the charge and in the event of the Society by reason of any such event having become or becoming under the provisions of section 5 of the Workmen's Compensation Act 1906 as originally passed or as amended by the Workmen's Compensation Act 1923 or of section 7 of the Workmen's Compensation Act 1925 or otherwise under any liability to pay compensation in respect of any omitted ordinary accident the capitalised value of that liability less the amount of any special call which may have been or may be paid by such member in respect of such omitted ordinary accident shall be deemed to be a debt due to the Society from such member and the capitalised value of the liability shall—

- (a) if it is a liability to pay the whole or any part of a lump sum be taken to be the amount of that lump sum or of that part thereof as the case may be; or
- (b) if it is a liability to pay a weekly payment be taken to be the amount of the lump sum for which the liability could if redeemable be redeemed under section 13 of the Workmen's Compensation Act 1925 and for the purpose of ascertaining such lump sum the provisions of sections 21 and 27 of and of the First Schedule to that Act shall apply.

(2) There shall be included amongst the debts which—

- (i) under section 33 of the Bankruptcy Act 1914 and section 118 of the Bankruptcy (Scotland)

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- Act 1913 are in the distribution of the property or assets of a bankrupt to be paid in priority to all other debts; and 3 & 4 Geo. 5. c. 20.
- (ii) under section 264 of the Companies Act 1929 are in the winding up of a company to be paid in priority to all other debts; and 19 & 20 Geo. 5. c. 23.
- (iii) under section 78 of the Companies Act 1929 are as respects a company registered in England in whose case either a receiver has been duly appointed on behalf of the holders of debentures of the Company or possession of any property of the Company has been duly taken by or on behalf of the holders of such debentures to be paid in priority to any claim for principal or interest in respect of the debentures;

the amount of any debt which by virtue of the last foregoing subsection is due from such member to the Society.

(3) The provisions of this section shall not prejudice or affect any payment of money made or act done before the passing of this Act by the trustee of the property of any member having become or becoming bankrupt as aforesaid or in pursuance of any such composition or any arrangement with any member's creditors as aforesaid or if the member is a company by any liquidator of such member or by any such receiver or manager as aforesaid or by or on behalf of any such holders of debentures as aforesaid but the amount of any debt which by virtue of subsection (1) of this section is due from such member as aforesaid to the Society shall be payable only out of the property of such member which remains undistributed upon the passing of this Act and *pari passu* with such proportion (if any) of the other debts which as aforesaid are to be paid in priority to all other debts or in priority to any claim for principal or interest in respect of the debentures as may remain undischarged at the said date.

9. The Society may if it thinks fit so to do enter into an agreement with any member (not being a member to whom any such event as is mentioned in subsection (1) of section 8 (Society to have preferential rights

Power to make new agreements with members.

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in certain events) of this Act has happened at the date of such agreement) releasing such member from all liability to pay any special call which has been or may be made in consideration of such member releasing the Society from all liability to indemnify such member against the payment of any compensation or damages paid or payable under the Acts or at common law or to repay to such member any compensation premium or call at any time paid by such member in respect of the death of or injuries to any workman to whom this Act relates resulting from any omitted ordinary accident:

Provided that if any member shall before the first day of January one thousand nine hundred and forty-one give to the Society notice in writing so to do the Society shall enter into an agreement with such member under this section.

Protection
of work-
men's
rights.

10. The provisions of subsection (3) of section 3 (Members to furnish names and particulars of workmen) of this Act shall not nor shall the provisions of subsection (3) of section 7 (Provision in case of default in payment of special call) of this Act nor shall any agreement made pursuant to the provisions of section 9 (Power to make new agreements with members) of this Act nor shall any other agreement between the Society and a member being an agreement made after the thirty-first day of December one thousand nine hundred and thirty-nine be effective so as to extinguish or diminish any liability which but for such provisions or the making of any such agreement as aforesaid would have attached to the Society under the provisions of section 5 of the Workmen's Compensation Act 1906 as originally passed or as amended by the Workmen's Compensation Act 1923 or of section 7 of the Workmen's Compensation Act 1925 to pay compensation in respect of any omitted ordinary accident.

Costs of
Act.

11. The costs charges and expenses preliminary to and of and incidental to the procuring obtaining and passing of this Act or otherwise in relation thereto shall be borne and paid by the Society.

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**The SCHEDULE referred to in the
foregoing Act.**

**PARTICULARS TO BE FURNISHED CONCERNING WORKMEN
TO WHOM THIS ACT RELATES.**

- (A) The date of the omitted ordinary accident.
- (B) The date when the workman first ceased work as a result of such accident.
- (C) The present address of such workman.
- (D) The cause of such accident.
- (E) The exact nature of the injury caused by such accident.
- (F) The name of the mine or works at which the workman was employed when such accident occurred.
- (G) Age and date of birth of such workman at the time of the accident.
- (H) Occupation of the workman at the time of the accident.
- (I) The average weekly earnings of such workman for the 52 weeks prior to the date of the accident or from the date of the beginning of his employment if his employment had been for less than 52 weeks. If wages subsequently reviewed full particulars to be given.
- (J) Particulars of the compensation paid and the periods for which compensation has been paid by such member in respect of such accident.
- (K) Particulars of work if any undertaken by the workman since the date of the accident and the wages paid for such work.
- (L) Particulars with copy of any awards memoranda or certificates relating to such accident.
- (M) Particulars with copy of memorandum of agreement if weekly compensation has been commuted or redeemed.
- (N) Copies of any medical reports in the member's possession relating to such accident.

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